

IN THE MATTER OF CONCILIATION : Ohio State Employment Relations Board
: Case Number: ~~2023-MED-10-0889~~
BETWEEN : **2023-MED-10-0899**
: Issue: Article 27 - Compensation
: **BOARDMAN TOWNSHIP,**
: **MAHONING COUNTY, OHIO,**
Employer : Date of Conciliation Hearing:
AND THE : May 10, 2024
: Date of Issuance of Decision and
: Award: June 10, 2024
: **OHIO PATROLMEN'S**
: **BENEVOLENT ASSOCIATION,**
: **RANK UNIT,**
Union : Howard D. Silver, Esquire
: Conciliator

DECISION AND AWARD OF THE CONCILIATOR

APPEARANCES

For: The Township of Boardman, Mahoning County, Ohio, Employer

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PROCEDURAL BACKGROUND

This matter came on for a conciliation hearing on May 10, 2024 at 10:00 a. m. at the Boardman Township Government Center, 8299 Market Street, Youngstown, Ohio 43214. At the hearing both parties were afforded a full and fair opportunity to present evidence and arguments in support of their positions on the single issue that remains unresolved between the parties. The conciliation hearing on May 10, 2024 concluded at 10:50 a. m. and the hearing record was closed at that time.

Both parties have satisfied their pre-hearing obligations in this matter through the submission of their last, best final settlement offers, within set timelines, as to the unresolved issue, in compliance with Ohio Revised Code section 4117.14(G)(3).

This conciliation proceeds under the authority of Ohio Revised Code section 4117.14(D)(1) and in accordance with conciliation guidelines presented in Ohio Revised Code sections 4117.14(G)(7)(a) - (f) and Ohio Administrative Code sections 4117-9-06(H)(1) – (6).

FINDINGS OF FACT

1. The parties to this arbitration proceeding, the Township of Boardman, Mahoning County, Ohio, hereinafter referred to as the Employer, and the Ohio Patrolmen's Benevolent Association, hereinafter referred to as the Union, are parties to a collective bargaining agreement in effect from January 1, 2021 through December 31, 2023, an Agreement that attaches to a bargaining unit comprised of eight (8) Police Sergeants, four (4) Police Lieutenants, and two (2) Police Captains.

2. The exclusive representative of the bargaining unit is the Ohio Patrolmen's Benevolent Association.
3. The parties engaged in bargaining their successor collective bargaining agreement on March 30, 2023; May 15, 2023; and November 8, 2023.
4. The parties were able to resolve all Articles to be included in their successor Agreement except one, Article 27, Compensation, as it relates to the rank differential to be paid among rank bargaining unit members.

UNOPENED AND TENTATIVELY AGREED ARTICLES

The conciliator directs that all Articles that remained unopened during the parties' bargaining of their successor Agreement be included unchanged in the parties' successor Agreement, an Agreement that is to be in effect from January 1, 2024 through December 31, 2026.

The conciliator directs that all Articles tentatively agreed by the parties during bargaining be included, in the form agreed by the parties, in the parties' successor collective bargaining agreement. The tentatively agreed Articles to be included in the parties' successor Agreement shall include the parties' tentative agreement as to a change in the number of years, from three years to two years, of continuous service in rank required to qualify for top pay as specified in Article 27, section 1.

UNRESOLVED ARTICLE

The single Article that remains unresolved between the parties is Article 27, Compensation, and the only issue within Article 27 that remains unresolved is the

percentage to be applied in calculating and paying rank differential, the difference in pay based on rank. For example, Police Sergeants are paid a percentage above the top pay for a Senior Patrol Officer; a Police Lieutenant is paid the same percentage above the top pay of Police Sergeant; a Police Captain is paid the same percentage above the top pay of a Police Lieutenant. The parties' collective bargaining agreement in effect from January 1, 2021 through December 31, 2023 set the rank differential at thirteen percent (13%).

During bargaining between the parties and in proceedings before the fact finder the Union proposed raising the rank differential in Article 27, section 1 from thirteen percent (13%) to fifteen percent (15%). The Employer remained persuaded that the thirteen percent (13%) rank differential was competitive, fair, and appropriate to the Employer's fiscal circumstance.

The fact finder recommended that the thirteen percent (13%) rank differential be retained in the parties' successor Agreement.

At conciliation, the Union presented its last, best final settlement offer on rank differential, proposing a percentage differential of fourteen percent (14%).

The Employer's last, best final settlement offer on rank differential remained at thirteen percent (13%).

FACTUAL CIRCUMSTANCES

The Township of Boardman abuts the City of Youngstown, Ohio from the south. Boardman Township is the second largest municipality in the Youngstown-Warren metropolitan area, and is a major retail hub in the region. Boardman Township employs

and operates a township police department that employs uniformed Patrol Officers who are represented through a separate bargaining unit that is represented by the OPBA, and employs uniformed Police Sergeants, Police Lieutenants, and Police Captains.

The fiscal state of the township is grounded in real estate taxes generated by various levies approved by the township's voters, augmented by local government subsidies. During the covid pandemic the township received federal subsidies through the Coronavirus Aid, Relief, and Economic Security (CARES) program, and through the American Rescue Plan Act (ARPA). These are one-time funds that are not reoccurring, and unless an exemption is approved, are not to be used for continuing operating needs.

CONCILIATOR'S DISCUSSION AND SELECTION AMONG THE PARTIES' LAST, BEST FINAL SETTLEMENT OFFERS

The Union points to comparable political subdivisions in the region that operate police departments, in particular pointing to the rank differentials paid in those municipalities, many of which pay a rank differential that is in excess of thirteen percent (13%). The rank pay differentials as shown by the Union range from fifteen percent (15%) paid by Jackson Township in Stark County, to sixteen and one-half percent (16½%) paid by the Warren Police Department for Sergeants, to eighteen and twenty-six hundredths percent (18.26%) paid by the Mahoning County Sheriff.

The Union also contends that due to severe staffing shortages and fewer candidates with experience in law enforcement, the burden of supervision has intensified among rank unit members, with this increase in supervisory responsibility deserving of recognition through the Union's proposed, modest increase in the rank differential pay

percentage. The Union argues that the Employer is fiscally capable of paying for the proposed increase and the extra pay proposed has been earned through the increased supervisory responsibilities imposed on rank unit members due to staffing shortages and less experienced Patrol Officers operating on the road.

The Employer examined the same comparables relied on by the Union and found that the Boardman Township rank unit members are among the highest paid uniformed Sergeants, Lieutenants, and Captains in the region. Under this circumstance the Employer sees no good reason increase the rank pay differential.

The above arguments were made before the fact finder who recognized the important work of the bargaining unit members but felt constrained by the criteria in Ohio Administrative Code section 4117-9-05(K), the fact finding guidelines approved by Ohio's State Employment Relations Board (SERB). As stated by the fact finder at page 9 of his fact-finding report:

... And the party seeking an increase or a change in the status quo has the burden to show that its proposal is warranted based on these criteria. Here, the record revealed that Boardman pays the Sergeants, Lieutenants, and Captains well overall compared to townships in the area.

The conciliation guidelines presented in Ohio Revised Code sections 4117.14(G)(7)(a) – (f) call for a consideration of past collective bargaining agreements between the parties, a comparison of the issue submitted to final offer settlement relative to the employees in the bargaining unit involved with the issue and how they relate to other public and private employees doing comparable work, the interests and welfare of the public, the ability of the public employer to finance the issue proposed, and the effect

of the adjustments on the normal standard of public service, the authority of the public employer, the parties' stipulations, and such other factors which are normally taken into consideration in determining issues submitted to final offer settlement.

The fact finder issued his report on February 6, 2024 and both parties have expressed their respect for and satisfaction with the reasons put forward by the fact finder in reaching his conclusions about what to recommend. In this case the fact finder recommended that the rank pay differential remain unchanged based on a lack of a compelling reason to alter it.

The conciliator has examined the same comparable data examined by the fact finder, has considered the same factors considered by the fact finder as presented in Ohio Revised Code sections 4417.14(G)(7)(a) - (f) and in Ohio Administrative Code sections 4117-9-06(H)(1) - (6), and has considered the same arguments made by the parties before the fact finder.

The conciliator comes to the same conclusions reached by the fact finder. The rank unit members are at or near the top of comparable classifications performing comparable work from positions in township police departments in the region. The competitiveness of this compensation does not militate for an increase in rank differential percentage. The other factors to be considered by the conciliator also provide no support for the proposed increase in rank differential pay. The conciliator does not find a reason sufficient in its weight or persuasiveness to move the conciliator to order a change to the *status quo* as it relates to rank differential.

Accordingly, the conciliator selects the last, best final settlement offer on the unresolved issue submitted by the Employer. With the exception of the modification to Article 27, section 1 that was tentatively agreed by the parties, the conciliator orders the retention of current language in Article 27.

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AWARD

1. The subject matter of this conciliation proceeding is arbitrable pursuant to Ohio Revised Code section 4117.14(D)(1).
2. All unopened Articles in their present form, and all tentatively agreed Articles in the form in which they were tentatively agreed, shall be included in the parties' successor Agreement.
3. One unresolved issue remained after bargaining and fact finding between the parties.
4. The parties' successor Agreement shall be in effect from January 1, 2024 through December 31, 2026.
5. The unresolved issue between the parties shall be resolved as follows:

The conciliator selects the last, best final settlement offer from the Employer on rank differential as expressed in Article 27, section 1. This selection leaves the rank differential percentage of thirteen percent (13%) unchanged.

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Columbus, Ohio
June 10, 2024

CERTIFICATE OF FILING AND SERVICE

I hereby certify that signed, duplicate originals of the foregoing Decision and Award of the Conciliator in the Matter of Boardman Township and the Ohio Patrolmen's Benevolent Association, SERB Case Number: 2023-MED-10-0889, and a data summary sheet, were filed electronically with the Ohio State Employment Relations Board at MED@serb.ohio.gov and served electronically upon the following this 10th day of June, 2024:

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